

GAHC010170232025



2025:GAU-AS:10620

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : WP(C)/4469/2025

SUJIT BORO
SON OF- TARUN BORO, RESIDENT OF VILLAGE- PAKRIGURI, PO-
SALBARI, PS- SALBARI, IN THE DISTRICT OF BAKSA, ASSAM.

VERSUS

STATE OF ASSAM AND OTHERS
REPRESENTED BY THE PRINCIPAL SECRETARY, PANCHAYAT AND RURAL
DEVELOPMENT, DISPUR, GUWAHATI - 781006.

2:PRINCIPAL SECRETARY
BODOLAND
TERRITORIAL COUNCIL
KOKRAJHAR
ASSAM - 783370.

3:MARKET SETTLEMENT COMMITTEE
BTC
REPRESENTED BY ITS CHAIRMAN
KOKRAJHAR
ASSAM - 783370.

4:DISTRICT COMMISSIONER
BAKSA DISTRICT
BTC
ASSAM -781372..

5:BLOCK DEVELOPMENT OFFICER
JALAH DEVELOPMENT BLOCK
JALAHGHAT
BAKSA
ASSAM 781327.

6:AKON DAIMARY
SON OF- BABU DAIMARY
RESIDENT OF VILLAGE- RAJABIL
PORUPAHI
IN THE DISTRICT OF BAKSA
ASSAM

B E F O R E
HON'BLE MR. JUSTICE DEVASHIS BARUAH

Advocates for the petitioner(s) :Mr. K Sarma

Advocates for the respondent(s) :Mr. G Bokolial
Govt. Advocate, Assam
Mr. S Bora
Standing Counsel, BTC

Date of hearing & judgment :**08.08.2025**

JUDGMENT & ORDER(ORAL)

Heard Mr. K Sarma, the learned counsel appearing on behalf of the petitioner. Ms. N Bora, the learned Standing Counsel P & RD Department, who appears on behalf of the respondent No.1, Mr. S Bora, the learned Standing Counsel, BTC, who appears on behalf of the respondent Nos.2, 3, and 5 and Mr. G Bokolial, the learned Government Advocate Assam, who appears on behalf of the respondent No.4.

2. Taking into account the issue involved, the order which this Court proposes to pass, this Court dispenses with the services of respondent No.6.

3. It appears from the materials on record that the NIT dated 07.05.2025 was issued by the Block Development Officer, Jalah Development Block, Jalahghat,

Baksa i.e. the respondent No.5 herein for settlement of markets/go-hats/parking/parghats/ferries cattlepounds, etc., for the year 2025-26. The petitioner along with various other bidders participated in the market, namely, Rupahi haat. It appears from the comparative statement which has been annexed as Annexure-3 to the writ petition that the petitioner as well as the respondent No.6 were the eligible bidders and the petitioner quoted Rs.99,500/-, whereas the respondent No.6 quoted Rs.74,800/-. While making the said assessment, the respondent No.5 had approved the bid of the petitioner. Subsequent thereto on 30.06.2025 taking into account that the petitioner was the highest bidder, the petitioner was temporarily allotted No.1 Rupahihat Bazar for collection of tolls w.e.f. 01.07.2025 to 30.06.2026. Subsequent thereto, it is seen that vide an order dated 05.07.2025, the respondent No.5 allotted the No.1 Rupahihat Bazar in favour of the respondent No.6, who admittedly had quoted a lesser amount to that of the petitioner, that too, without assigning any reason.

4. Taking into account the materials on record and, more particularly, the comparative statement so prepared by the respondent No.5 and the order dated 30.06.2025, this Court is of the opinion that the order dated 05.07.2025 cannot be sustained as the same does not disclose any reason as to why the order dated 30.06.2025 was nullified vide the order dated 05.07.2025. The action on the part of the respondent No.5 to pass the order dated 05.07.2025 being without any reason, this Court, therefore, sets aside the order dated 05.07.2025.

5. Accordingly, the instant writ petition, therefore, stands disposed of with the following observation(s) and direction(s):

- (i). The order dated 05.07.2025 is set aside and quashed on the ground

that the same is unreasonable, unfair and violative of Article 14 of the Constitution.

(ii). This Court directs the respondent No.5 to pass appropriate order(s) taking into account the tender conditions as well as the comparative statement so prepared for settlement of the No.1 Rupahihat Bazar.

6. With the above, the instant writ petition stands disposed of.

JUDGE

Comparing Assistant